

Suspension and debarment:

System of Award Management (SAM) Check Via Visual Compliance

Any recipient of funds must not transact or conduct business with any individual or entity that has an active exclusion on the System for Award Management (SAM) (www.sam.gov). The list contains those individuals and entities that the U.S. Government has suspended or debarred based on misconduct or a determination by the U.S. Government that the person or entity cannot be trusted to safeguard U.S. Government funds. Suspended or debarred entities or individuals are excluded from receiving any new work or any additional U.S. Government funding for the duration of the exclusion period. Partners HQ or any field office may disallow costs, annul, or terminate the transaction, debar or suspend the recipient, or take other remedies as appropriate, if any recipient violates this provision.

The field office must notify Partners HQ immediately upon learning that it or any of its principals, at any time prior to or during the duration of this award:

- a. Are presently excluded or disqualified from doing business with any U.S. Government entity;
- b. Have been convicted or found liable within the preceding three years for committing any offense indicating a lack of business integrity or business honesty such as fraud, embezzlement, theft, forgery, bribery or lying;
- c. Are presently indicted for or otherwise criminally or civilly charged by any governmental entity for any of the offenses enumerated in paragraph c.(2); or
- d. Have had one or more U.S.-funded agreements terminated for cause or default within the preceding three years.

Principal means—

- a. An officer, director, owner, partner, principal investigator, or other person within a participant with management or supervisory responsibilities related to a covered transaction; or
- b. A consultant or other person, whether or not employed by the participant or paid with Federal funds, who—
 - i. Is in a position to handle Federal funds;
 - ii. Is in a position to influence or control the use of those funds; or,

- iii. Occupies a technical or professional position capable of substantially influencing the development or outcome of an activity required to perform the covered transaction.

The U.S. Government requires the following compliance checks prior to the expenditure of funds: [SAM.gov](#), the [UN's Specially Designated Nationals And Blocked Persons List \(SDN\)](#), and [Office of Foreign Assets Control \(OFAC\) Sanctions Lists](#). To satisfy this requirement, Partners, in accordance with Federal Regulation, requires staff to run a Visual Compliance check on all recipients (individuals and entities) who are receiving any funds. The website for Visual Compliance is: <https://www.visualcompliance.com/> and the necessary login information will be provided by Partners HQ. Proof that the Visual Compliance check was done must be retained and kept along with proof of the payment, **prior to disbursing funds to the recipient.** The Visual Compliance check must be run at a minimum, once per calendar year (January – December) prior to the first payment of the year in order to be compliant.

Each month, Partners HQ will request copies of selected Visual Compliance checks for inspection and to ensure compliance. The transactions will be selected at random.